Dharma Krishan vs State Of Delhi & Anr on 14 August, 2025

Author: Sanjeev Narula

Bench: Sanjeev Narula

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* IN THE HIGH COURT OF DELHI AT NEW DELHI
+ BAIL APPLN. 3104/2025
DHARMA KRISHAN .....Petitio
Through: Mr. N. Hariharan, Senior Advocate
with Mr. Amann Shreyas, Mr. J.
Rajesh, Mr. Yash Aggarwal, Mr.
Apsalan Ahmed, Ms. Punya Rekha
Angara, Mr. Aman Akhtaa, Ms.
Vasundhara N., Mr. Vinayak Gautam
Ms Vasundhara Raj Tyagi and Mr.
Arjan Singh Mandla, Advocates.
versus

STATE OF DELHI & ANR.
Through: Mr
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+ BAIL APPLN. 3105/2025
BHARAT KUMAR GOYAL
Through: Mr
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THE STATE OF NCT OF DELHI AND ANR .....Res

Through: Mr. Amol Sinha, ASC (Crl.) wi
Kshitiz Garg, Mr. Ashvini Kum
Ms. Chavi Lazarus, Mr. Nitish
Dhawan and Ms. Sanskriti Nimb
Advocates for State.
IO/Inspector Pankaj Malik, Cr
Branch.
Mr. Siddharth Aggarwal, Senio
Advocate with Mr. Tarun Goomb
Mr. Suryadev Kaushik, Mr. Gau
Mr. H. Sethi, Mr. Rahul Kapoo
Rahul Pawar, Ms. Pranjal Kain
Ms. Ritika Sharma, Advocates
complainant.

\+ BAIL APPLN. 3106/2025
VINOD KUMAR AMBAWATTA ALIAS VINOD AMBAWATTA
...

Through: Mr. N. Hariharan, Senior Advo
with Mr. Amann Shreyas, Mr. J
Rajesh, Mr. Yash Aggarwal, Mr
Apsalan Ahmed, Ms. Punya Rekh
Angara, Mr. Aman Akhtaa, Ms.
Vasundhara N., Mr. Vinayak Ga
Ms Vasundhara Raj Tyagi and M
Arjan Singh Mandla, Advocates

versus

STATE OF DELHI & ANR.

Through: Mr
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BAIL APPLN. 3104/2025 & connected matters

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CORAM:
HON'BLE MR. JUSTICE SANJEEV NARULA
ORDER

% 14.08.2025 CRL.M.A. 24117/2025 in BAIL APPLN. 3104/2025, CRL.M.A. 24123/2025 in BAIL APPLN. 3105/2025 and CRL.M.A. 24125/2025 in BAIL APPLN. 3106/2025 (seeking exemption from filing the certified copies/ dim annexures)

1. Exemption is granted, subject to all just exceptions.

2. The Applicants shall file legible and clearer copies of exempted documents, compliant with practice rules, before the next date of hearing.

3. Accordingly, the applications stand disposed of. BAIL APPLN. 3104/2025, BAIL APPLN. 3105/2025, BAIL APPLN.

4. The present applications under Section 482 of the Bharatiya Nagarik Suraksha Sanhita, 20231 (formerly Section 438 of the Code of Criminal Procedure, 19732) seek pre-arrest bail in FIR No. 196/2025 registered under Sections 420/486/471/120B of the Indian Penal Code, 1860 at Crime Branch "BNSS"

"Cr.P.C"

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The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 18/08/2025 at 22:15:52 (Delhi). The Applicants' earlier applications for pre-arrest bail before the Sessions Court were dismissed.

5. Mr. N. Hariharan, Senior Counsel for the Applicants, submits that the present case does not originate from any fraudulent or criminal act by the Applicants, but is the outcome of a long-standing civil dispute over land rights, now intertwined with liquidation proceedings of M/s Iceberg Developers Pvt. Ltd. He further submits the following in support of the Applications:

5.1. On 2nd October, 2010, M/s Iceberg entered into a Collaboration Agreement with certain landowners in Village Dhumaspur, Gurugram, but on the same day the said agreement was terminated and replaced with a Memorandum of Understanding-cum-Agreement to Sell.3 Subsequently, disputes arose regarding performance of the Agreement which led to the institution of civil proceedings before the Civil Court, Gurugram, by M/s Iceberg, wherein interim orders were passed on

> 26th September, 2019, which were subsequently confirmed on 11th November, 2020, restraining the landowner from alienating or changing the nature of the property. The Civil Court also recorded that the collaboration agreement had been terminated in 2010 by the execution of the MoU and that the MoU/Agreement to Sell did not confer any right, title or interest in the subject property. 5.2. M/s Iceberg thereafter, in the year 2020, assigned its rights under the Agreement to Sell to M/s Arora Realtech Pvt. Ltd., Mukesh Kumar and Dharam Krishan (Applicant in BAIL APPLN. 3104/2025), transferring the right to sue for specific performance. During pendency of this civil dispute, corporate insolvency proceedings were initiated against M/s Iceberg vide This is a digitally signed order.

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5.3. On 16th November, 2023, the Liquidator issued an e-auction notice including "amount receivable for collaboration rights" as an asset, despite the fact that such rights had been terminated in 2010 by the MoU/Agreement to Sell and the civil suit for specific performance of the MoU/Agreement to Sell is pending before the concerned Civil Court. The Complainant, Rivierkrishna Developers (LLP), claims to have purchased these purported rights in the auction.

5.4. Aggrieved by the illegal sale of rights, Mr. Dharam Krishan lodged a complaint before the IBBI on 18th February, 2025, which was acknowledged as GRI/2025/69. In reply, the Liquidator admitted that the e-auction of the alleged collaboration rights was conducted without knowledge of the pending Civil Suit and claimed it was undertaken on the assurance of Mr. A.K. Mishra, the ex-director of the Corporate Debtor and on the basis of the balance sheet provided. Notably, Mr. A.K. Mishra, is arrayed as Accused No. 1 in the present FIR.

5.5. Nevertheless, on 5th April, 2024, the Liquidator issued a Sale Certificate in favour of the Complainant, declaring M/s Iceberg to be the absolute owner of 75% of the land with rights of partition and mutation. 5.6. However, the Civil Court, vide order dated 5th May, 2025, held the sale to be prima facie illegal for violating the injunction and contravening Section 36(4)(a)(iv) of the Insolvency and Bankruptcy Code, 2016, and "MoU/Agreement to Sell"

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> The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 18/08/2025 at 22:15:52 refused to implead the Complainant in the pending civil suit, while allowing the impleadment of M/s Arora Realtech, Mukesh Kumar and Dharam Krishan on the strength of the assignment agreements.

6. In view of the above set of facts, Mr. Hariharan argues that the FIR is nothing more than an attempt to give a criminal colour to what is purely a civil dispute arising from the liquidation process. The Applicants neither created nor transferred any rights to the Complainant and have not acted outside the legal framework of the pending civil proceedings. The dispute has arisen for no fault of the Applicants. However, he states that the Applicants are nevertheless willing to join and fully cooperate with the investigation.

7. On the other hand, Mr. Siddharth Aggarwal, Senior Counsel for the Complainant, controverting the allegations made by Mr. Hariharan, opposes the application. He submits, at the outset, that the Applicants have suppressed their criminal antecedents which ought to have been disclosed while seeking pre-arrest bail as has been held by the Supreme Court.

8. Mr. Aggarwal further submits that the role attributed to each of the Applicants pertains to transactions spanning the period from 2017 till 2022, involving documents which are unregistered, forged, and suppressed, and form the very basis of defeating the rights of an auction purchaser i.e., the Complainant. He contends that the investigation is at a nascent stage and the grant of anticipatory bail at this juncture would seriously impede a fair and proper investigation. It is contended, in particular, that granting bail at this stage would afford the Applicants an opportunity to tamper with or destroy material documents, thereby frustrating the ongoing investigation into the alleged financial fraud. Having regard to the nature of the transactions and This is a digitally signed order.

The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 18/08/2025 at 22:15:52 the allegations of conspiracy, it is urged that there exists a real likelihood of the Applicants fabricating records or creating a paper trail to obscure the extent of their involvement. Custodial interrogation, therefore, is said to be essential to trace the flow of funds, unearth the modus operandi, and unravel the alleged fraud in its entirety.

9. Similar opposition is raised by Mr. Amol Sinha, ASC (Crl.) for the State. He submits that, having regard to the nature of the allegations in the FIR, the gravity of the offence, and the need to unearth the deep-rooted conspiracy alleged by the Complainant, custodial interrogation of the Applicants is essential.

10. The Court has considered the rival submissions. It is correct that the investigation is still at a nascent stage. At the same time, the Applicants' apprehension of arrest cannot be said to be illusory, since the ASC for the State has expressly submitted that custodial interrogation of the Applicants is being sought. The apprehension of arrest is, therefore, well-founded.

11. While it is settled that economic offences must be viewed with seriousness, and that courts are expected to strike a careful balance between the right to personal liberty and the necessity of a fair and effective investigation, it is equally well recognised that anticipatory bail is not to be denied as a matter of course merely because financial impropriety is alleged. Having regard to the nature of the transactions in question, which appear to be largely document-based, and in view of the Applicants'

stated willingness to cooperate, this Court is of the opinion that, at this stage, custodial interrogation is not indispensable. It would suffice to direct the Applicants to join the investigation forthwith and render full cooperation. The Investigating Agency shall, by way of a written notice, communicate to the This is a digitally signed order.

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12. Till the next date of hearing, no coercive action shall be taken against the Applicants.

13. Issue notice. Mr. Amol Sinha, ASC (Crl.) for State and Mr. Tarun Goomber, counsel for Complainant, accepts notice.

14. Status report be filed before the next date of hearing.

15. Renotify on 18th September, 2025.

SANJEEV NARULA, J AUGUST 14, 2025/as This is a digitally signed order.

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